

Index

1. Vijyant Agarwal
2. Vineeta Agarwal

Both R/o House No. 07, Type-V, Netaji Subhash
University of Technology, Sector-3 Dwarka, New Delhi
110078

V/s

ATS Realworth Private Ltd.

Reg. Office: 711/92, Deepali, Nehru Place, New Delhi-110019

Corporate Office: ATS Tower, Plot No. 16, Sector-135, Noida

Page No.	Contents
	Brief facts
	Relief Sought
	Proforma for execution as prescribed
	Affidavit
	Demand draft
	Certified copy of the final order dated 18.04.2024 read with rectification order dated 05.08.2024 passed by the Hon'ble Authority
	<u>Annexure P-1</u> True copy of BBA alongwith Letter dated 23.10.2018
	<u>Annexure P-2</u> Calculation sheet
	Vakalatnama

Brief facts

1. The present application is moved u/s 40(1) of the RERA, 2016 for the enforcement of final Order dated 18.04.2024 read with rectification Order dated 05.08.2024 passed by the Ld. Haryana Real Estate Regulatory Authority in Complaint No. 4463/ 2021.
2. That on 25.10.2018, an agreement to sell was executed between the parties for flat no. 3051 at 5th floor in Tower-3, super area 1550 sq. ft. in the project "ATS Grandstand Phase-I". The said flat was booked for a total sale consideration of Rs.83,36,769/- out of which Rs. 7,20,000/- has been paid by the decree holders as booking amount and Rs. 25,00,000/- through Punjab National Bank (PNB). In accordance to Clause 7.1 of the aforesaid agreement to sell, the respondent had to give possession on or before 30.06.2023.
3. On 23.10.2018, respondent issued a letter pertaining to payment of pre-EMI till offer of possession, wherein the respondent with respect to apartment no. 3051 in ATS Grandstand Phase-I, situated at sector-99, Gurugram vide above-mentioned letter informed the complainants that after expiry of subvention scheme (as approved by PNBHFL Bank), the present scheme shall be treated as closed and the buyer shall be solely liable to pay the remaining EMIs of his bank loan.
4. The respondent paid the pre-EMIs for a total of ____ months that too irregularly and completely stopped paying the pre-EMIs by December, 2018. The complainants made several representations before the respondent but nothing yield results. Thereafter, the complainants moved Complaint No.

4463/ 2021 before the Hon'ble Real Estate Regulatory Authority vide Complaint No. 4463/ 2023. The respondent neither filed Written Statement nor paid costs imposed on it. It simply delayed the proceedings by seeking adjournments on one pretext or the other.

5. That the Hon'ble Real Estate Regulatory Authority was pleased to: -

- (1) Direct the respondent/ builder was directed to return the Pre EMI already paid by the complainants to the financial institution on behalf of the respondent and further, pay Pre EMIs/ EMI till the offer of possession directly to the financial institution as per the agreed terms of the letter dated 23.10.2018.
- (2) Direct the respondent to disclose the status of the completion certificate, date of physical possession of unit and details of escrow account of the project including credit and debit records to the complainant-allottees within a period of 30 days from the date of the decree/ order.

6. That the Hon'ble Real Estate Regulatory Authority was further pleased to direct the planning branch to check the status of the project and in case of any violation of the provisions of the RERA, 2016, initiate necessary penal proceeding against the respondent.

7. That upon application by the complainant/ decree holder the Hon'ble Authority was pleased to go through the record and make the rectification in the Order dated 18.04.2024 vide Order dated 05.08.2024 to the extent of total amount paid by the complainants/ decree holders to the respondent.

Relief

To get the order dated 18.04.2024 read with rectification Order dated 05.08.2024 passed by the Ld. Haryana Real Estate Regulatory Authority in Complaint No. 4463/ 2021 executed through the Hon'ble Authority.

The operative part of the order dated 18.04.2024 is reproduced as under: -

"Hence, the authority hereby passes this order and issues the following directions under section 37 of the Act to ensure compliance of obligation cast upon the promoter as per the function entrusted to the authority under section 34(f) of the act of 2016:

- I. The respondent/builder is directed to return the pre-EMI already paid by the complainants to the financial institution on behalf of the respondent and further, pay Pre EMI's/EMI till the offer of possession directly to the financial institution as per the agreed terms of the letter dated 23.10.2018.
- II. A period of 90 days is given to the respondent to comply with the directions given in this order and failing which legal consequences would follow.
- III. The respondent is directed to handover the physical possession of the allotted unit of the complainant as per terms and condition of the buyer's agreement after obtaining the occupation certificate from the concerned department.
- IV. The planning branch is directed to check the status of the project and in case of any violation of provisions of the Act of 2016, necessary penal proceeding to be initiated against the respondent."

Proforma for execution

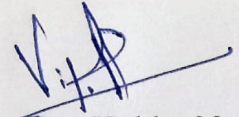
APPLICATION FOR EXECUTION OF DECREE

Before the Haryana Real Estate Regulatory Authority, Gurugram

I, Vijyant Agarwal, decree-holder, hereby apply for execution of the decree hereinbelow set forth: -

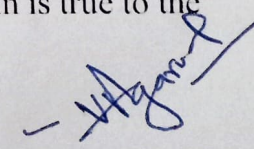
Complaint number	Name of parties	Date of final order	Whether any appeal preferred from decree	Payment or adjustment made, if any	Previous application, if any, with date and result	Amount with interest due upon the decree or other relief granted thereby	Against whom to be executed
1	2	3	4	5	6	7	8
4463/ 2021	Vijyant Agarwal & Vineeta Agarwal v. ATS Realworth Private Ltd.	18.4.24	No	No	N/A		ATS Realworth Private Ltd.

I, Vijyant Agarwal, declare that what is stated herein is true to the best of my knowledge and belief.


Decree Holder No. 1

27th day of September, 2024

I, Vineeta Agarwal, declare that what is stated herein is true to the best of my knowledge and belief.


Decree Holder No. 2

27th day of September, 2024